

24PR00307 Conservatorship of Jean Marie Stotts

County: santa-barbara

Division: Conservatorship

Hearing date: 2026-08-12

Motion: Petition for Appointment of Conservator of Estate

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Tentative Ruling: Conservatorship of Jean Marie Stotts

Case Number

24PR00307

Case Type

Conservatorship

Hearing Date / Time

Wed, 08/12/2026 - 09:30

Nature of Proceedings

Petition for Appointment of Conservator of Estate

Tentative Ruling

Probate Notes:

Appearances required.

The following must be submitted:

Proper Proof of Service of Notice of Hearing. There is no Proof of Service showing the Conservatee received personal service of the petition and citation. In a conservatorship proceeding, jurisdiction is obtained through personal service of a citation and a copy of the petition for conservatorship upon the proposed conservatee, 15 days before the hearing. (Prob. Code, § 1824; Conservatorship of Jones (1986) 188 CA3d 306, 309.) There is no Proof of Service of the Summons on file.

Further Briefing. Petitioner must file a Memorandum of Points and Authority showing why the Court has authority to grant a conservatorship over the estate under the current circumstances of this case. The memorandum must include discussion of Part 6 of Division 4 of the Probate Code, especially whether this Court has authority to pierce the protections of the conservatee's spouse outlined in sections 3012 and 3051, and whether a conservatorship over the estate can be justified in this case instead of using the procedures outlined in Article 3, Chapter 2 of Part 6 of Division 4 (§§3080 et seq.).

Petitioner should at least reference, if not discuss the principles enshrined in, and the history of Article 3 outlined in Conservatorship of Bower (2016) 247 Cal.App.4th 495, and how those principles and that history should be considered in the Court's decision in this case.

Judges

Judge Denise M. Hippach

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